

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

NNABUGWU CHINEDU ANDREW, AVERS LOGISTICS LTD.,
AND CJ DELUZ NIGERIA LTD., *Complainants*

v.

MARINE TRANSPORT LOGISTICS, INC., ALLA SOLOVYEVA,
AND RAYA BAKHIREV, *Respondents*.

DOCKET NO. 20-12

Served: August 3, 2021

ORDER OF: Erin M. WIRTH, *Chief Administrative Law Judge*.

**ORDER DENYING COMPLAINANTS' SECOND MOTION FOR RECONSIDERATION
AND REQUIRING BRIEFING**

On July 30, 2021, Complainants filed a motion for reconsideration of the July 2, 2021, order denying Complainants' motion for reconsideration which had denied reconsideration of the June 11, 2021, order requiring briefing, and the May 6, 2021, order on motions to compel. The time for Respondents to respond to the motion has not run, however, their response is not required to rule on the motion.

Commission Rule 69(d) states that a "repetitious motion will not be entertained." 46 C.F.R. § 502.69(d). "When a request for relief has been determined to be repetitious, Rule 69(d) provides that it will not be entertained. The Commission has generally declined to entertain repetitious requests for relief." *Mitsui O.S.K. Lines Ltd. v. Global Link Logistics, Inc.*, 2013 FMC LEXIS 6, at *11-12 (citing *Green Master Int'l Freight Services Ltd. -- Possible Violations of the 1984 Act*, 29 S.R.R. 1319, 1322 (FMC 2003) and *Holt Cargo Systems, Inc. v. Delaware River Port Auth.*, 28 S.R.R. 1268, 1272 (ALJ 1999)). The repetitious second motion for reconsideration will not be entertained. Accordingly, Complainants' second motion for reconsideration, filed on July 30, 2021, is **DENIED**.

The parties were instructed that: "No further discovery will be ordered. The parties shall file briefs as set forth in the schedule below and raise any objections or concerns in the briefs." Order Requiring Briefing at 2 (June 11, 2021). The parties were again instructed that: "Any party who believes the other party did not provide relevant requested discovery should raise those arguments in their briefs as previously instructed." Order Denying Complainants' Motion for Reconsideration at 2 (July 2, 2021). Complainants have failed to file their briefs as required and have unduly prolonged this proceeding.

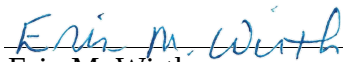
The parties will be provided an opportunity to file briefs and to present their arguments. If Complainants fail to file their briefs as required, their case may be involuntarily dismissed pursuant to Commission Rule 72(b) which states:

If the complainant fails to prosecute or to comply with these rules or an order in the proceeding, a respondent may move to dismiss the action or any claim against it, or the presiding officer, after notice to the parties, may dismiss the proceeding on its own motion. Unless the dismissal order states otherwise, a dismissal under this subpart, except one for lack of jurisdiction or failure to join a party, operates as an adjudication on the merits.

46 C.F.R. § 502.72(b).

It is hereby **ORDERED** that the parties comply with the following schedule and that the parties follow the requirements for parties' briefs, proposed findings of fact, responses to proposed findings of fact, and appendices identified in the September 30, 2020, scheduling order at 2-3. Failure to file timely briefs or failure to comply with the requirements may result in sanctions including dismissal.

August 31, 2021	Complainants file brief with proposed findings of fact and appendix.
September 28, 2021	Respondents file opposition brief with proposed findings of fact and responses to Complainants' proposed findings of fact, and appendix.
October 13, 2021	Complainants file reply brief with responses to Respondents' proposed findings of fact.


Erin M. Wirth
Chief Administrative Law Judge